

**CLIENT BUSINESS AGREEMENT
COMMERCIAL**

This agreement ("**Agreement**") is executed between:

- (1) **Mastercard Asia/Pacific Pte Ltd**, a Singapore company with offices at 3 Fraser Street, DUO Tower, #17 - 21/28, Singapore 189352 ("**Mastercard**"); and
 - (2) **Pemo Payments Service Provider LLC** having its registered office address at, Office no 09-124, 8th & 9th Floor, The Office 4, We Work, One Central, Dubai World Trade Centre, Dubai, United Arab Emirates ("**Client**"),
- (each, a "**Party**" and collectively, the "**Parties**"),

and is made on the day the last party executes this Agreement ("**Commencement Date**").

WHEREAS:

- (A) Mastercard is a leading international payment systems company, providing its customers in the region and world-wide through its parent company Mastercard Incorporated, the holding company of Mastercard International Incorporated - with a full range of electronic payment products (including Mastercard®, MasterPass®, Maestro® and Cirrus®) and services (including authorisation, clearing and settlement);
- (B) Client carries on the business, inter alia, of provides SMEs with tools to control their entire payables suite through an advanced policy management engine and Client has entered into an agreement with an Issuing Bank pursuant to which Issuing Bank will issue Relevant Cards (as defined below) in the Territory pursuant to the Standards (as defined below); and
- (C) Mastercard and Client desire to enter into an arrangement by which Mastercard will provide Client with financial and other support as specified below ("**Support**") in relation to the Relevant Cards (as defined below), subject to the achievement by the Client of certain annual performance targets, on the terms specified below.

THE PARTIES AGREE AS FOLLOWS:

1. Termination of existing business/incentive agreements

- 1.1. Upon execution of this Agreement, the Customer Business Agreement (Commercial) dated 26th June 2023, between Mastercard and Customer (the "**Existing Incentive Agreement**") will terminate and such termination will be deemed to take effect on the commencement of the Support Period of this Agreement. Each Party unconditionally and irrevocably agrees that on termination of the Existing Incentive Agreement, each Party shall be released and discharged from all representations, warranties, undertakings, claims, obligations and demands whatsoever under the Existing Incentive Agreement.
- 1.2. For the avoidance of doubt:
 - 1.2.1. any provision of the Existing Incentive Agreement which expressly provides for the survival of such provision(s) subsequent to any termination or expiry of the Existing Incentive Agreement, will survive the termination of the Existing Incentive Agreement; and
 - 1.2.2. any accrual of support or incentive payments under the Existing Incentive Agreement will cease upon execution of this Agreement.
- 1.3. Notwithstanding any other provision of this Agreement, each Party will hold the other Party safe and harmless against any and all actions, proceedings, liabilities, claims, demands, losses, damages, charges, costs and expenses of whatsoever relating to the Existing Incentive Agreement or its termination.

2. Support

2.1. Relevant Cards

The provision of Support and the associated Targets (as defined below) under this Agreement are applicable to Client's Mastercard® branded commercial Cards in the Territory, which includes all product tiers and includes Mastercard® branded merchant or non-financial institution co-branded Cards ("**Relevant Cards**").

2.2. Support Period

Support will be paid by Mastercard to the Client over five (5) Contract Years commencing on 1 July 2024 ("**Support Period**").

2.3. Performance Targets and Support

2.3.1. Provision of the GDV Support, and other Support (where expressly specified), by Mastercard to Client is subject to fulfilment by Client in each Contract Year of the Mastercard GDV performance targets for that Contract Year ("**Targets**"). The Targets that Client must attain in each Contract Year and the Support that Mastercard will provide in that Contract Year are specified in Exhibit A.

2.3.2. Where Support payments are due under this Agreement, Client shall submit a request for payment to Mastercard in an amount equal to the relevant Support payment due ("**Payment Request**"). The validity of the Payment Request shall be determined by Mastercard in accordance with the terms of this Agreement. Support payments will be made within forty five (45) days of receipt by Mastercard of a valid Payment Request. To the extent that Client does not submit the Payment Request for Support within nine (9) months of the applicable Contract Year to Mastercard, Client acknowledges and agrees that any such unclaimed Support shall be forfeited, and in no event shall Mastercard have any obligation to make any payment, or make any rebate or other consideration to Client for any unclaimed amount of such Support.

2.3.3. For the avoidance of doubt, cards acquired from another issuer during the Support Period (whether through merger, joint venture, portfolio acquisition or similar bulk acquisition or the acquisition of any right to operate and manage any such portfolio) ("**Acquired Portfolio**") will not (and any GDV in respect of those cards will not) be included in the calculation of Client's performance for the purposes of satisfying any Targets. In the event Client obtains an Acquired Portfolio, Mastercard in cooperation with Client will review Client's card portfolio and both Parties will exercise reasonable commercial efforts to negotiate and execute a revision to the commercial terms of this Agreement incorporating the Acquired Portfolio.

2.4. GDV Support

2.4.1. The Domestic GDV Support and the International GDV Support (collectively, the "**GDV Support**") is based on Client achieving the Mastercard International GDV Targets and the Mastercard Domestic GDV Targets in Exhibit A for each Contract Year. To qualify for any GDV Support in each Contract Year, Client must achieve a minimum of 80% of the Mastercard Domestic GDV Target and Mastercard International GDV Target, specified in Exhibit A (the "**GDV Performance Threshold**"). In each Contract Year, Client will be required to achieve the GDV Performance Threshold for the Mastercard International GDV Target and the Mastercard Domestic GDV Target respectively, to be eligible for GDV Support for such Target.

2.4.2. Following the end of each Contract Year, Mastercard will pay to Client an amount equal to the GDV Support due in respect of that Contract Year, calculated as follows:

(a) **International GDV Support**

(i) International GDV Support will be tiered as follows:

- (1) 35 basis points on the Mastercard International GDV actually achieved by Client during the relevant Contract Year, where Client has achieved equal to or greater than the GDV

Performance Threshold but less than or equal to 100% of the Mastercard International GDV Target for that Contract Year;

- (2) 35 basis points on the incremental Mastercard International GDV actually achieved by Client during the relevant Contract Year, where Client has achieved greater than 100% but equal to or less than 120% of the Mastercard International GDV Target for that Contract Year;

and

- (3) 40 basis points on the incremental Mastercard International GDV actually achieved by Client during the relevant Contract Year, where Client has achieved greater than 120% the Mastercard International GDV Target for that Contract Year.

- (ii) For the avoidance of doubt, the International GDV Support is payable on a progressive tiered basis. As such, the International GDV Support will be calculated as the sum of the International GDV Support due under clauses 2.4.2(a)(i)(1), 2.4.2(a)(i)(2), and 2.4.2(a)(i)(3).

- (iii) Additionally, the International GDV Support specified in clauses 2.4.2(a)(i)(2) and 2.4.2(a)(i)(3) will not be payable by Mastercard in any Contract Year in which:

- (1) Client failed to achieve the GDV Performance Threshold for the Mastercard Domestic GDV Target; or
- (2) An Extension was granted in accordance with clause 2.12 below.

(b) Domestic GDV Support

- (i) Domestic GDV Support will be tiered as follows:

- (1) 2 basis points on the Mastercard Domestic GDV actually achieved by Client during the relevant Contract Year, where Client has achieved equal to or greater than the GDV Performance Threshold but less than or equal to 100% of the Mastercard Domestic GDV Target for that Contract Year;
- (2) 2 basis points on the incremental Mastercard Domestic GDV actually achieved by Client during the relevant Contract Year, where Client has achieved greater than 100% but equal to or less than 120% of the Mastercard Domestic GDV Target for that Contract Year; and
- (3) 2.5 basis points on the incremental Mastercard Domestic GDV actually achieved by Client during the relevant Contract Year, where Client has achieved greater than 120% of the Mastercard Domestic GDV Target for that Contract Year.

- (ii) For the avoidance of doubt, the Domestic GDV Support is payable on a progressive tiered basis. As such, the Domestic GDV Support will be calculated as the sum of the Domestic GDV Support due under clauses 2.4.2(b)(i)(1), 2.4.2(b)(i)(2) and 2.4.2(b)(i)(3).

- (iii) Additionally, the Domestic GDV Support specified in clauses 2.4.2(b)(i)(2) and 2.4.2(b)(i)(3) will not be payable by Mastercard in any Contract Year in which:

- (1) Client failed to achieve the GDV Performance Threshold for the Mastercard International GDV Target; or
- (2) An Extension was granted in accordance with clause 2.12 below.

2.4.3. Such payment will be made following Mastercard's review of data from, among other things, the Issuing Bank's Quarterly Member Reports ("**QMRs**") for that Contract Year and Mastercard's clearing and settlement systems and, based on that review,

Mastercard's determination about whether Client has achieved the Mastercard GDV Growth Targets for the relevant Contract Year.

- 2.4.4. If Mastercard is obligated to pay financial support regarding GDV generated by the Relevant Cards to a third party under an existing and/or future incentive agreement, Mastercard will reduce the Support paid under this Agreement by that amount.

2.5. Sign-On Bonus

- 2.5.1. The Sign-On Bonus specified in Exhibit A will be payable to Client in the manner provided for in clause 2.5.2, subject to the receipt by Mastercard of a valid Payment Request.

- 2.5.2. (a) The Sign-On Bonus for Contract Year 1 shall be payable on the Commencement Date.

(b) The Sign-On Bonus for Contract Year 2 shall be payable on the conversion to Mastercard Commercial cards by the Client. The Sign-On Bonus for Contract Year 2 shall be payable on the Client achieving the GDV Threshold for the aggregate Mastercard International GDV Targets for Contract Years 1 and 2.

- 2.5.3. If Client fails to:

- (a) achieve the GDV Performance Threshold for the aggregate of the International GDV Targets for the entire Support Period;

Mastercard will be entitled to recover the Sign-On Bonus in accordance with clause 3.4 below. Further, in the event, the Customer achieves the GDV Performance Threshold, but achieves less than 100% of the cumulative Mastercard International GDV Target, Mastercard will be entitled to recover the Sign-On Bonus on a pro-rata basis.

2.6. Advisors Support

- 2.6.1. Mastercard agrees to provide to Client Mastercard Advisors standard products and services (to be provided by its consulting division "**Mastercard Advisors**") up to a maximum value in each Contract Year as stated in Exhibit A ("**Advisors Support**").

- 2.6.2. The Advisors Support will be provided to Client in accordance with the provisions set out in Exhibit C of this Agreement. Client agrees to use the Advisors Support only for projects related to Mastercard Advisors. Advisors Support is not redeemable for cash and any reference to pay and similar terms will be interpreted accordingly.

- 2.6.3. The Advisors Support attributable to each Contract Year may not be utilized in any subsequent Contract Year. To access Advisors Support, for each project, Client will execute a statement of work with Mastercard Advisors ("**SoW**"). Each SoW, combined with the terms and conditions set out in Exhibit C, will constitute an independent contract ("**Advisors Contract**"). In case Client has not signed a SoW by the end of the eligible Contract Year, Mastercard may deliver one or more of the following data analytics reports to Client: Rapid Product Diagnostic, PA Dashboard, Portfolio Analytics Enhanced/Campaign Management, Cross-Border Portfolio Benchmarking, Propensity Modeling and/or Portfolio Analytics Engine (available for the UAE only). The delivery of such data analytics reports will fulfil Mastercard's Advisors Support for that Contract Year under this Agreement and no SoW will be entered into for customised Client Mastercard Advisors Support for that Contract Year. In any event, no Advisors Support may be used after the expiration of the Support Period.

- 2.6.4. Where the value of Advisors Support requested for by Client exceeds the amount allocated for that Year, Client will pay for the additional support on a user-pay basis. Client will share with Mastercard all response rates, spending levels, and all other absolute and comparative information for credit cards and solicitations relating to any activity involving the use of Mastercard Advisors support.

- 2.6.5. The provision of Advisors Support by Mastercard in each Contract Year is conditioned upon Client achieving the GDV Performance Threshold for the Mastercard

International GDV Targets in the relevant Contract Year. If Client achieves equal to or greater than the GDV Performance Threshold but less than 100% of the Mastercard International GDV Target in the relevant Contract Year, Mastercard will be entitled to proportionately reduce the Advisors Support.

2.7. Marketing Support

2.7.1. The Marketing Support provided by Mastercard to Client as stated in Exhibit A is provided on a reimbursement basis, to support marketing campaigns conducted by Client during the Support Period on the terms contained in Exhibit B. The Marketing Support shall be payable as follows:

(a) For Contract Year 1, the fixed Marketing Support shall be payable, when the Client achieves the GDV Performance Threshold of the Mastercard Domestic GDV Target for Contract Year 1. . If Client achieves equal to or greater than the GDV Performance Threshold but less than 100% of the Mastercard Domestic GDV Target in the relevant Contract Year, Mastercard will be entitled to proportionately reduce the Marketing Support; and

(b) During the Support Period, the Client shall also be eligible for variable Marketing Support which shall be paid @ 30 basis points on the Mastercard International GDV Target for the relevant Contract Year. The provision of Marketing Support by Mastercard in each Contract Year is conditioned upon Client achieving the GDV Performance Threshold for the Mastercard International GDV Targets in the relevant Contract Year.

27.2 The Marketing Support attributed to each Contract Year may not be utilized in any subsequent Contract Year. No Marketing Support may be used after the expiration of the Support Period and any unused Marketing Support will be withdrawn and will not be available to Client. Marketing Support for a given Contract Year shall only be available to Client upon agreement between Client and Mastercard on a written detailed marketing plan during the quarter preceding the relevant Contract Year.

2.7.3 The provision of Marketing Support by Mastercard is conditioned upon Client matching Mastercard's Marketing Support, on a dollar-for-dollar basis, in each Contract Year by Client paying direct costs incurred for such marketing campaigns in each Contract Year.

2.8. Product Development Support

2.8.1. The Product Development Support provided by Mastercard to Client as specified in Exhibit A is provided to offset (in whole or in part) Client's costs incurred in relation to third-party products and services to support Client's Relevant Card portfolio. The Product Development Support attributed to each Contract Year will be provided by way of reimbursement against fees paid by Client for third-party products and services and presentation of such documents evidencing payment as Mastercard may, in its discretion, reasonably require.

2.8.2. The Product Development Support attributed to each Contract Year may not be utilized in any subsequent Contract Year. No Product Development Support can be used after the expiration of the Support Period and any unused Product Development Support at that time will be withdrawn and will not be available to Client.

2.8.3. The Product Development Support shall become payable by Mastercard, at the rate of 10 basis points on the Mastercard International GDV Targets, upon the Client achieving the GDV Performance Threshold for the Mastercard International GDV Targets in the relevant Contract Year. If Client achieves equal to or greater than the GDV Performance Threshold but less than 100% of the Mastercard Domestic GDV Target in the relevant Contract Year, Mastercard will be entitled to proportionately reduce the Product Development Support.

2.9. Product Innovation Support

2.9.1. The Product Innovation Support provided by Mastercard to Client as specified in Exhibit A is provided to offset Client's costs (in whole or in part) incurred in relation to

Mastercard products and services. The Product Innovation Support shall be payable at the rate of 15 basis points on the Mastercard International GDV Targets for the respective Contract Year, and for Contract Year 1 all MDES related costs will be paid. The Product Innovation Support will be provided by way of reimbursement against fees paid by Client for Mastercard products and services and presentation of such documents evidencing payment as Mastercard may, in its discretion, reasonably require.

- 2.9.2. The Product Innovation Support attributed to each Contract Year may not be utilized in any subsequent Contract Year. No Product Innovation Support may be used after the expiration of the Support Period and any unused Product Innovation Support at that time will be withdrawn and will not be available to Client.
- 2.9.3. The provision of Product Innovation Support by Mastercard in each Contract Year is conditioned upon Client achieving the GDV Performance Threshold for the Mastercard International GDV Targets in the relevant Contract Year. If Client achieves equal to or greater than the GDV Performance Threshold but less than 100% of the Mastercard International GDV Target in the relevant Contract Year, Mastercard will be entitled to proportionately reduce the Product Innovation Support.

2.10. Training and Knowledge Transfer Support

- 2.10.1. The Training and Knowledge Transfer Support provided by Mastercard to Client as stated in Exhibit A is provided to support:
 - (a) Client's training requirements for Mastercard Card programs only, and such training can be provided by Mastercard or a third party; and
 - (b) The attendance of Client's executives at Mastercard regional and global events with a knowledge transfer component (Innovation Forum, leadership forums, product specific forums).
- 2.10.2. Training and Knowledge Transfer Support will be provided by way of reimbursement against sums paid by Client for Mastercard training and event attendance and presentation of such documents evidencing payment as Mastercard may, in its discretion, reasonably require. The Training and Knowledge Transfer Support attributed to each Contract Year may not be utilized in any subsequent Contract Year. No Training and Knowledge Transfer Support may be used after the expiration of the Support Period and any unused Training and Knowledge Transfer Support at that time will be withdrawn and will not be available to Client.

2.11. License Fee Waiver

- 2.11.1. The License Fee Waiver is provided by way of reimbursement by Mastercard to Client as stated in Exhibit A to cover ICA/BIN costs. The License Fee Waiver shall only be provided in Contract Year 1 and may not be utilized in any subsequent Contract Year.

2.12. Pro-rating and Support Eligibility

Client will use its best efforts to achieve the Targets. Client and Mastercard acknowledge that there may be extenuating circumstances which may prevent Client, in any Contract Year, from achieving the Targets in that Contract Year. As a result, Mastercard agrees as follows:

- 2.12.1. If Client achieves, in any Contract Year, Mastercard International GDV or Mastercard Domestic GDV of less than 100% of the applicable Target, then within 14 days after Mastercard advises Client of such an event, a representative(s) of Client and Mastercard (which will include at least one person from each of Client and Mastercard on the Joint Executive Steering Committee referred to below) will meet at Client head office to discuss the reasons for the shortfall in meeting those Targets. Based on the results of that meeting, and any documentation presented at that meeting explaining the reasons for the shortfall, Mastercard will provide a one (1) Gregorian calendar quarter extension to the Contract Year in respect of which the Target was not met ("**Extension**") to allow time for Client to achieve 100% of the Target. Such Extension will also extend the Support Period is subject to the condition that GDV Support

payments in the Contract Year to which such Extension applies will only be payable on a maximum of four (4) quarters in any Contract Year.

- 2.12.2. If Mastercard provides an Extension after which the Target is still not met, Mastercard will provide an additional Extension. For the avoidance of doubt, Extensions granted under clauses 2.12.1 and 2.12.2 will be applied automatically.
- 2.12.3. If Mastercard provides an additional Extension after which the Target is still not met, Mastercard will have the option, in its sole discretion, to do one of the following:
 - (a) provide additional Extension(s), which will require the Parties to execute an amending agreement to give effect to such Extension(s);
 - (b) recover any Support paid in advance in the relevant Contract Year; or
 - (c) such other act as it considers reasonable in the circumstances.
- 2.12.4. Within 14 days after the meeting referred to in the preceding paragraph Mastercard will inform Client of its decision, which will be final and binding on both Client and Mastercard.

3. Client's Obligations

3.1. Issuing Agreement with Issuing Bank

3.1.1. Client represents and warrants:

- (a) that it shall enter into an Issuing Agreement with the Issuing Bank under which the latter is entitled to issue the Relevant Cards under Client's brand within the Territory for the entire Term;
- (b) that it will use reasonable endeavours to ensure that this Issuing Agreement will remain valid and enforceable for the duration of the Term;
- (c) it has the right to enter into this Agreement and fully perform its obligations hereunder, free of any conflict with any other obligations by which it may be bound; and
- (d) the performance of its obligations hereunder does not violate or infringe upon the intellectual property rights or any other rights of any other party or contravenes the laws or regulations of any governmental, regulatory or judicial authority.

3.1.2. In the event that the Issuing Agreement in relation to the Relevant Cards terminates for any reason, and the Client does not replace such Issuing Bank with a new banking partner licensed by Mastercard in the Territory (**New Issuing Bank**) within one hundred and twenty (120) days of such termination, Mastercard shall have the right to terminate this Agreement with immediate written notice to the Client. Upon termination by Mastercard under this clause, the Client shall refund any Support paid by Mastercard within ten (10) business days of such termination.

3.2. Client acknowledges that the issuance of the Relevant Cards by the Issuing Bank is subject to the Standards. In the event of a material breach of the Standards by the Issuing Bank, such that Mastercard is compelled to, or has the right to, terminate the Issuing Bank's right to issue Mastercard® branded Cards in accordance with the Standards, Mastercard will have the right to terminate this Agreement, unless Client is able to replace the Issuing Bank with a New Issuing Bank within one hundred and eighty (180) days of Mastercard notifying Client that the Issuing Bank is in material breach of the Standards. In the event of such termination of the Agreement under this clause, Client will be entitled to pro-rated payments of Support based on Client's achieved Targets as of the date of the termination of this Agreement, and subject to Client's compliance with its relevant commercial obligations pertaining to such Support.

3.3. Mastercard GDV

During the Support Period, Client will use its best efforts to achieve all GDV Targets.

3.4. Exclusivity and Preference

3.4.1. **Card Issuance Exclusivity**

For the duration of the Support Period, Client agrees to have a Mastercard exclusive commercial Card portfolio and Client agrees not to (and will ensure its affiliates do not) issue or promote any commercial Cards or commercial_-based payment product of a Competing Brand.

3.4.2. **Brand Exclusivity and Preference**

- (a) Client agrees that during the Support Period and for a two (2) year period after the end of the Support period, it will cause all advertisements and promotions (whether above-the-line or below-the-line) relating to or involving Client's Relevant Card portfolio to either:
 - (i) promote the Mastercard® brand to the exclusion of any Competing Brand; or
 - (ii) give the Mastercard® brand greater prominence than any Competing Brand.
- (b) For the avoidance of doubt, for printed materials in English and/or Arabic, greater brand prominence will mean that the Mastercard® brand is positioned at the top of any vertical display of multiple payment brands and/or at the leftmost position of any horizontal display of multiple payment brands.

3.4.3. Any failure to comply with clause 3.4 will be considered a material breach which entitles Mastercard to claw back the Support at any time, in accordance with clause 4.4 below.

3.5. Disclosure

Client will disclose to Mastercard, in advance, its intended Mastercard® commercial_Card acquisition and usage programs, including card acquisition and usage-generating marketing and promotional materials.

3.6. Life of Account Provision

3.6.1. During the Support Period and for a two (2) year period after the end of the Support Period, Client will not:

- (a) directly encourage any of the cardholders of Mastercard® branded Cards, issued by Client (or any of its affiliates) prior to or during the Support Period, in a manner which is intended (in Mastercard's reasonable opinion) to cause those Cardholders to convert to, or to apply for or to acquire a Card with any Competing Brand; or
- (b) convert any Mastercard® branded cards issued by Client (or any of its affiliates) prior to or during the Support Period to any Competing Brand.

3.6.2. Any failure to comply with clause 3.6 will be considered a material breach.

3.7. Continued Observance Provision

3.7.1. To the extent that, during the Support Period, Client in any way divests itself (in whole or in part) of its Relevant Card portfolio, Client undertakes to Mastercard that Client will cause the continued observance by the entity acquiring the portfolio (or relevant part thereof) of the terms of this Agreement.

3.7.2. In addition to the preceding paragraph, to the extent that Client outsources or otherwise delegates responsibility for any part of its Relevant Card portfolio, Client agrees that it will ensure that the entity to which such responsibility has been outsourced or otherwise delegated does not do, or fail to do, something which, if Client had done it, or failed to do it, would cause Client to be in breach of this Agreement.

3.8. Use of Support

- 3.8.1. Client agrees that it will use all Support and any additional financial incentive paid under this Agreement to grow its Relevant Card business in the Territory by funding (in whole or in part):
- (a) the design and production of the Relevant Cards;
 - (b) the development and implementation of usage, activation or similar campaigns and promotions for the Relevant Cards;
 - (c) the design, production and usage (whether through advertising or any other medium) of collateral material to Support any such campaigns and promotions; and/or
 - (d) systems implementation to enhance the functionality of the Relevant Cards.
- 3.8.2. Client will not use any such Support for the benefit of any Competing Brand. Any failure to use the Support as provided in clause 3.8 will be considered a material breach of this Agreement which entitles Mastercard to claw back the Support at any time, in accordance with clause 4.4 below.

4. **General Terms and Conditions.**

4.1. Reporting

In addition to any reporting required under the Standards (such as QMRs), Client will, upon request, provide Mastercard with such other reports and information as Mastercard may reasonably request to confirm performance hereunder. Additionally, the Parties understand and agree that for purposes of measuring performance, Mastercard GDV and the achievement (or likely achievement) of any Target, Mastercard will rely on, among others, the QMRs periodically submitted by Client and data from the Mastercard clearing and settlement system.

4.2. Joint Executive Steering Committee

- 4.2.1. A Joint Executive Steering Committee (the “**Committee**”) will be established to oversee this alliance. The Committee will meet at least annually prior to the commencement of each subsequent Contract Year to review performance against Targets and the associated Support payments and to identify corrective actions as necessary for the next Contract Year.

Membership of the Committee will include but not be limited to:

Mastercard:

Account Manager

Client:

Business owner

- 4.2.2. Notwithstanding clause 4.2.2 above, the appointed members will meet informally to review Client's performance on a quarterly basis.

4.3. Verification

- 4.3.1. Without prejudice to any other right or remedy under this Agreement, Mastercard may request, upon reasonable notice, that Client makes available, either directly or through the co-operation of the Issuing Bank, its relevant card accounts and records and any other relevant card program information at Client's premises, during normal business hours, to Mastercard or a third party nominated by Mastercard, for the purpose of verifying Client's compliance with this Agreement and achievement (or likely achievement) of any and/or all of the Targets. Client will comply with this request and will provide reasonable co-operation to Mastercard and/or the third party (as the case may be) subject to the execution of such confidentiality undertakings and compliance with such security procedures as Client may reasonably require.
- 4.3.2. Mastercard will pay for the cost of any such verification requested by it under clause 4.3 unless the results of the verification evidence that Client has not been complying with this Agreement or has provided inaccurate information to Mastercard, in which case Client will pay for the cost of such verification.

4.4. Support Refund

4.4.1. Specific Cause:

In the event that Client:

- (a) Fails to comply with clause 3.4 (Exclusivity and Preference);
- (b) Fails to comply with clause 3.6 (Life of Account Provision) or;
- (c) Unlawfully exits this Agreement or otherwise ceases performance of its obligations under this Agreement prior to the end of the term in contravention of clause 4.8 (Termination),

Mastercard shall be entitled to recover all Support paid to Client.

4.4.2. General:

Mastercard will be entitled to set-off or recover any amount which:

- (a) Mastercard may have paid in advance if it is later determined that Client is not entitled to such amount whether as differential or whole, due to non-performance, under-performance or violation of the terms of this Agreement; or
- (b) is otherwise due to Mastercard under or arising out of this Agreement.

- 4.4.3. Mastercard may make that set-off through Client's MCBS account and, if necessary, may do so at any time during the term of this Agreement and after the expiry of this Agreement.

4.5. Anti-Bribery and Corruption Laws and Compliance

- 4.5.1. The Parties recognize that Mastercard and any person or entity acting on its behalf must comply with international laws related to anti-bribery and corruption (including the Foreign Corrupt Practices Act (United States federal law), the UK Bribery Act, and other applicable law). Each Party shall comply, and shall ensure that each of its subcontractors (if so approved or permitted), Sublicensees and personnel complies with all applicable anti-bribery and corruption laws applicable to business dealings, including with Government Officials (as defined below) and any implementing regulations in respect of such laws.
- 4.5.2. Each Party warrants, represents and covenants to the other Party that it (and each of its employees, subcontractors, Sublicensees and personnel) has not, and shall not, in connection with the transactions contemplated by this Agreement or in connection with any other business transactions involving the other Party, make, promise or offer to make any payment or transfer of anything of value or other advantage directly or indirectly through a representative, intermediary agent or otherwise: (i) to any Government Official; (ii) to any political party; or (iii) to any other person for the purpose of improperly influencing any act, omission to act or decision of such official, political party or individual or securing an improper advantage to assist the Parties in obtaining or retaining business.
- 4.5.3. Each Party also warrants, represents and covenants to the other Party that it and each of its employees, subcontractors, Sublicensees and personnel shall not, in connection with any business activities involving the other Party, accept anything of value from any third party seeking to influence any of its acts or decisions or in order to secure an improper advantage to that third party.
- 4.5.4. "Government Official" is defined as any employee or officer of a government of a country, state or region, including any federal, regional or local government or department, agency, enterprise owned or controlled by such government, any official of a political party, any official or employee of a public international organization, any person acting in an official capacity for, or on behalf of, such entities, and any candidate for political office.
- 4.5.5. Failure by a Party to comply with the terms of this clause shall constitute a material breach of this Agreement.

4.6. Taxes

Client will be responsible for all taxes that might be charged in relation to the Support provided to it under this Agreement. Mastercard will not be liable for any applicable taxes including but not limited to any other turnover related taxes, and/or other duties, assessments, levies, or value-added taxes that arise regarding this Agreement, which may be levied by any government authority.

4.7. Confidentiality

Subject to each of Client and Mastercard having the right, if required by any applicable regulatory or governmental body or judicial authority, to make disclosure to any applicable regulatory or governmental body or judicial authority, and Mastercard having the right to disclose to its affiliates (being any company directly and indirectly controlled by or under the control of Mastercard such as Maestro, Mondex or Cirrus), Client will:

- 4.7.1. treat all information disclosed under this Agreement and its terms and conditions as confidential and will not disclose the same to any third party;
- 4.7.2. ensure that its agents, employees, representatives and subcontractors comply with clause 4.7; and
- 4.7.3. not use such information other than is necessary for the purpose of performing its commitments or exercising its rights under this Agreement.

4.8. Termination

The term of this Agreement will commence on the Commencement Date and will end upon the expiration of the Support Period (the "**Term**"). This Agreement will not be terminated by either Party during the Term except for a material breach, or in accordance with clause 4.10.3 below. In the event of such a breach, the non-breaching Party will give the breaching Party notice of the events constituting a breach and a thirty (30) day period to cure such breach ("**Cure Period**"). If the breach is not remedied to the reasonable satisfaction of the non-breaching Party during the Cure Period, termination will be effective upon the expiration of the Cure Period.

4.9. Notices

Any notice or other document to be served under this Agreement may be delivered or sent by prepaid registered post, and if overseas by airmail post (which, unless proven to the contrary, will be deemed to have been served on the tenth day following the date of posting) to the party to be served as follows:

Mastercard: *Address:*
Mastercard Asia/Pacific
Pte Ltd
3 Fraser Street, DUO
Tower, #17 - 21/28,
Singapore 189352

Attention:
Regional Counsel

With a copy to:
Regional Counsel Middle
East and Africa
Mastercard Worldwide
Building 4, Dubai Internet
City
Dubai
United Arab Emirates

Client: *Address:*
Pemo Payments
Service provider LLC
Office no 09-124, 8th &
9th Floor, The Office 4,
We Work, One Central,
Dubai World Trade
Centre, Dubai, United
Arab Emirates

Attention:
Alessandro Duri

4.10. Miscellaneous

- 4.10.1. A failure or delay of either party to enforce any provision of or to exercise any right under this Agreement will not be construed to be a waiver. No waiver by a party will be effective unless expressly made in writing.
- 4.10.2. If any provision of this Agreement is held by a court of competent jurisdiction to be unenforceable or invalid in any respect, such unenforceability, or invalidity will not affect any other provision of this Agreement, and this Agreement will then be construed as if such unenforceable or invalid provision had never been a part of this Agreement.
- 4.10.3. The amount of the Support to be provided by Mastercard has been calculated by reference to the revenues that Mastercard would receive in respect of the Mastercard GDV Targets based on current fee calculation methodology and on the continued processing of all of Client issuing and acquiring Mastercard transactions through Mastercard's proprietary authorization and clearing system. Should Mastercard ever need (whether by law, regulation or otherwise) to adjust that methodology in a manner that adversely affects Mastercard's revenues, Mastercard will notify Client of the relevant requirement, giving details thereof and, following such notification, the Parties will meet in good faith to discuss the impact of the adverse law, regulation or other factor to the commerciality of the Support and the achievability of the Targets, and agree (in writing) on revised commercial terms for this Agreement. If the Parties fail to come to an agreement within sixty (60) days of the commencement of such adverse law, regulation or other factor, either Party will have the right to terminate this Agreement with immediate effect. In the event of termination by a Party under this clause:
- (a) Each Party will be released of its commercial obligations under this Agreement; and
 - (b) Mastercard will have the right to recover all Support paid (excluding GDV Support) on a pro rata basis commensurate with the total Mastercard GDV achieved by Client.
- 4.10.4. This Agreement evidences the entire agreement and understanding between Mastercard and Client with respect to the transactions contemplated by this Agreement and supersedes all prior agreements between the Parties relating to the subject matter of this Agreement. This Agreement supplements (and does not limit or replace) Client's obligations, or Mastercard's rights or remedies, under the Standards. In the event of contrary or inconsistent terms and conditions in this Agreement versus the Standards, the Standards will prevail.
- 4.10.5. NOTWITHSTANDING ANYTHING HEREIN (INCLUDING IN ANY EXHIBITS HERETO) TO THE CONTRARY, IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INCIDENTAL, PUNITIVE, EXEMPLARY, INDIRECT, SPECIAL OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR IN ANY WAY CONNECTED WITH THIS AGREEMENT, EVEN IF SUCH PARTY IS ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, WHETHER SUCH DAMAGES ARE BASED IN CONTRACT, TORT (INCLUDING BUT NOT LIMITED TO NEGLIGENCE), STRICT LIABILITY, INDEMNIFICATION OR OTHER THEORY AT LAW OR IN EQUITY. THE AGGREGATE LIABILITY OF EITHER PARTY, IN ALL EVENTS, TO THE OTHER PARTY FOR CLAIMS RELATING TO THIS AGREEMENT, WHETHER SUCH CLAIM IS BASED IN CONTRACT, TORT (INCLUDING BUT NOT LIMITED TO NEGLIGENCE), STRICT LIABILITY, INDEMNIFICATION OR OTHER THEORY AT LAW OR IN EQUITY, SHALL BE LIMITED TO THE AGGREGATE AMOUNT PROVIDED AS SUPPORT UNDER THIS AGREEMENT.
- 4.10.6. This Agreement is governed by the laws ("**Laws**") of New York State and is subject to the exclusive jurisdiction of the courts of New York State. For the avoidance of doubt, the Laws will exclude conflict-of-laws or similar provisions under those Laws that would mandate or permit the application of the laws of any other jurisdiction.

- 4.10.7. The Client may not assign any of its rights or obligations under this Agreement to any third party. Mastercard may assign any of its rights and obligations under this Agreement to any affiliate of Mastercard.
- 4.10.8. The Parties agree that this Agreement may be signed and/or transmitted by electronic mail of a .PDF document or electronic signature (e.g., DocuSign or similar electronic signature technology) and thereafter maintained in electronic form, and that such electronic record shall be valid and effective to bind the Party so signing as a paper copy bearing such Party's hand-written signature. The Parties further consent and agree that the electronic signatures appearing on this Agreement shall be treated, for purpose of validity, enforceability and admissibility, the same as hand-written signatures.

4.11. Defined Terms

The capitalized terms used in this Agreement have the following meanings:

Card	means a device, whether or not in card form, and whether in physical or virtual form, for the purchase of goods or services, payment of debts or obligations, or transfer of value, however delineated or denominated, and shall without limiting the foregoing include Cards which offer both payment and other functionality;
Competing Brands	means Visa, American Express, Diners Club, Discover, JCB, CUP, Carte Blanche, or any other brand that Mastercard reasonably determines to be in competition with Mastercard;
Contract Year	means A period of twelve Gregorian calendar months plus any Extension;
Contract Year 1	means the Contract Year commencing on the first day of the Support Period;
Contract Year 2	means the Contract Year commencing on the day following the end of Contract Year 1;
Contract Year 3	means the Contract Year commencing on the day following the end of Contract Year 2;
Contract Year 4	means the Contract Year commencing on the day following the end of Contract Year 3;
Contract Year 5	means the Contract Year commencing on the day following the end of Contract Year 4;
Extension	has the meaning given in clause 2.12;
Gross Dollar Volume or GDV	means the aggregate cash amount of transactions (converted, where relevant, to a USD amount) effected with the Relevant Cards issued by Client in the Territory and that are for the purchase of goods and services and for cash advances but will not include easy-Debit cheque volumes which are not processed on a Mastercard platform in accordance with the normal prepaid/debit/credit card processing model. Among other things, this term excludes account fees, finance charges, transaction fees, delinquency fees, over-the-limit fees, and any other fees imposed by the Client or others;
Issuing Agreement	means the agreement which Client shall enter into with Issuing Bank and pursuant to which Issuing Bank will issue the Relevant Cards in the Territory;

Issuing Bank	means Nymcard or such other bank agreed between the Parties in writing that will issue the Relevant Cards according to an Issuing Agreement which it has entered into with Client;
Mastercard®	means the Mastercard registered trademark(s);
Mastercard Domestic GDV	Mastercard GDV generated by transactions effected inside the geographic borders of the Territory and for which the currency of the transaction is the then current lawful currency of the Territory, but excluding all ATM on-us and POS on-us transactions effected in the Territory;
Mastercard Gross Dollar Volume or Mastercard GDV	means Gross Dollar Volume which is comprised of the aggregate of the following for purchases of goods and services as well as cash disbursements made on the Relevant Cards: (i) Client domestic on-us volume; (ii) incoming domestic interchange/Mastercard processed volume; (iii) incoming international Mastercard processed volume.
Mastercard International GDV	means Mastercard GDV generated by transactions effected outside the geographic borders of the Territory, processed over a Mastercard platform and for which the currency of the transaction is not the then current lawful currency of the Territory;
Pro-Rated Support Overpayment	means the greater of: (i) nil; or (ii) the USD amount obtained through the following calculation: $\text{USD [Support paid]} - [((\text{Aggregate Mastercard Domestic GDV} / \text{Aggregate Mastercard Domestic GDV Target}) \times (\text{Domestic GDV Support paid}) + ((\text{Aggregate Mastercard International GDV} / \text{Aggregate Mastercard International GDV Target}) \times (\text{International GDV Support paid}))]; \text{ and}$
Standards	means the Mastercard Rules manual and other manuals, along with Mastercard guides, bulletins and policies that may be updated from time to time as accessible via Mastercard Connect™;
Territory	means United Arab Emirates; and
USD	means United States of America dollar.

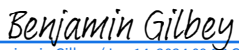
Signature Page Follows.

Executed by authorized representatives of both parties:

Pemo Payments Service Provider LLC:



Mastercard Asia/Pacific Pte Ltd:


Benjamin Gilbey (Jun 14, 2024 09:36 GMT+8)

Name: Alessandro Duri

Position: COO

Date: Jun 13, 2024

Name: Benjamin Gilbey

Position: Senior Vice President, Product Management, Digital Consumer Solutions, Asia Pac

Date: Jun 14, 2024

MASTERCARD DEAL MANAGEMENT
APPROVED AS TO FINANCE FORM

FINANCE INITIALS: JD
DATE: 12 JUNE 2024

MASTERCARD LEGAL DEPARTMENT
APPROVED AS TO LEGAL FORM

LAWYERS INITIALS: DB
DATE: 12 JUNE 2024

EXHIBIT A
Targets and Support

Volume targets

	Contract Year 1	Contract Year 2	Contract Year 3	Contract Year 4	Contract Year 5	Total
Mastercard Domestic GDV Target (USD)	146,230,387.99	438,691,163.96	773,851,213.22	1,291,541,881.99	2,047,780,873.31	4,698,095,520.47
Mastercard International GDV Target (USD)	23218457.13	69655371.39	122872075.1	205070985.8	325146592.8	745,963,482.30

Mastercard Support

	Contract Year 1	Contract Year 2	Contract Year 3	Contract Year 4	Contract Year 5	Total
Domestic GDV Support (USD)*	29,246	87,738	154,770	258,308	409,556	939,619
International GDV Support (USD)**	81,265	243,794	430,052	717,748	1,138,013	2,610,872
Marketing Support (USD)	219,655	208,966	368,616	615,213	975,440	2,387,890
Advisors Support (USD)	-	120,000	150,000	150,000	150,000	570,000
Sign-On Bonus (USD)	300,000	200,000	-	-	-	500,000
Product Innovation Support (USD)	34,828	104,483	184,308	307,606	487,720	1,118,945
Product Development Support (USD)	23,218	69,655	122,872	205,071	-	420,817
Training and Knowledge Support	15,000	15,000	15,000	15,000	15,000	75,000
License Fee Waiver	40,000	-	-	-	-	40,000
Total Support (USD)	743,212	1,049,637	1,425,619	2,268,947	3,175,729	8,663,144

* Domestic GDV Support values in the above table show the Domestic GDV Support payable in the event that Client achieves exactly 100% of the

Mastercard Domestic GDV Target. Actual Domestic GDV Support is calculated in accordance with clause 2.4.2(b) above.

****** *International GDV Support values in the above table show the International GDV Support payable in the event that Client achieves exactly 100% of the Mastercard International GDV Target. Actual International GDV Support is calculated in accordance with clause 2.4.2(a) above.*

EXHIBIT B

This Exhibit contains the terms and conditions pertaining to the provision of Marketing Support.

1. Marketing Campaigns

- 1.1. Marketing Support is provided on the expectation that Client will organize and carry out a series of campaigns over the Support Period exclusively promoting the launch of its Relevant Card portfolio as further described below ("**Campaign**"). Mastercard will not enter into any direct contractual relationship with any third party provider of services to Client in connection with any Campaign.
- 1.2. Each Campaign will include the production of above-the-line marketing material and investment for the purposes of calculating Client's Campaign Investment under clause 3 below relates solely to the cost of media and advertising.

2. Commitment

2.1. Use of Support

Client will use the Marketing Support provided herein only in the manner described in clause 1 of this Exhibit A. Marketing Support may not be used to promote Competing Brands or competing card programs.

2.2. Campaign Mechanics

Client will conduct each Campaign in accordance with the mechanics described in a written plan to be submitted by Client and agreed in writing by Mastercard prior to launch of each Campaign. Client represents and warrants to Mastercard that each Campaign will comply in all respects with all applicable laws and regulations, including any requirements of prior filings with or authorizations from any regulatory authority and that Client will conduct each Campaign in all respects in accordance with the requirements of all applicable laws and regulations.

3. Client Campaign Investment

Client represents and warrants that its own total aggregate direct investment in the Campaigns during the Support Period (excluding the value of the Marketing Support) will be no less than the Marketing Support to be provided by Mastercard in each Contract Year ("**Intended Client Investment**"). The provision of Marketing Support by Mastercard is conditioned upon Client matching Mastercard's Marketing Support, on a dollar-for-dollar basis, in each Contract Year by Client paying its own direct costs incurred for such marketing campaigns in each Contract Year. Within 30 days following Client's last expenditure in respect of each Campaign, Client will deliver to Mastercard a report, confirming Client's actual, and final aggregate investment in the Campaign supported by invoices from third party suppliers to Client pertaining to the Campaign together with evidence that such third party invoices have been settled by Client and any further documentation Mastercard may reasonably request. In the event such amount is less than the Intended Client Investment, Mastercard's Marketing Support for the applicable Contract Year will be adjusted downwards to reflect the shortfall.

4. Reporting

In addition to any reporting required under the Standards, Client will provide Mastercard with such reports and accountings (in form and substance satisfactory to Mastercard) as to how the Marketing Support is used and as to the results of each Campaign. Any Support used for any purpose other than for a Campaign will be immediately due and repayable to Mastercard by Client.

5. Use of Mastercard Branding

Mastercard hereby consents to Client and its creative agency using the Mastercard® name, logo, trademarks and other intellectual property ("**Marks**") for the purpose of conducting each Campaign provided, however, that such use will be in accordance with graphic standards and requirements contained in the *Mastercard Brand Reproduction Standards and Artwork Manual* and in Mastercard's *Brand Center* located online at www.mastercardinternational.com. That

consent is subject to Client submitting all proposed uses of the Marks (and related slogans or messages) hereunder for Mastercard's prior review and approval no less than 14 days prior to any copy deadline.

6. Refund of Support

In the event that Mastercard has reason to believe that:

- 6.1. a Campaign is not executed substantially in the manner provided for in this Agreement and to the satisfaction of Mastercard; and
- 6.2. the Marketing Support (or any portion thereof) is or has been used for any purpose other than for a Campaign, then notwithstanding anything contained herein,

the entire Marketing Support (or any portion thereof) that has been paid by Mastercard to Client as Marketing Support will be immediately refunded to Mastercard by Client.

7. Miscellaneous

Mastercard will not be liable to Client with regard to the performance of Client or its suppliers in relation to any Campaign. Client will indemnify and hold Mastercard harmless from and against any and all actions, authority acts, losses, costs, expenses (including, without limitation, the reasonable fees and expenses of counsel for Mastercard), proceedings, claims and/or demands in any way arising out of the acts or omissions and/or the performance or failure to perform by Client or its suppliers under this letter Agreement including the preparation, production, operation and realization of any Campaign. Under no circumstances will Mastercard have any liability to Client for any claim arising from or relating to any Campaign in excess of

the Marketing Support.

EXHIBIT C

These terms and conditions will apply to Mastercard Advisors Support for the provision of any products or services in a project (each a “**Program**”) by Mastercard Asia/Pacific Pte Ltd (“**Mastercard Advisors**”), and for which Client has entered a statement of work (“**SoW**”) with Mastercard Advisors outlining the specific products, services or deliverables (“**Deliverables**”) and fees. In the event of a conflict between the Agreement, this Exhibit C, and a specific SoW, the SoW will prevail followed by this Exhibit C and then the Agreement. Each executed SoW, combined with the terms set out in this Exhibit C, will be an independent contract between Client and Mastercard Advisors. For clarity, the termination of a particular Advisors Contract (in part or full) will not automatically terminate or affect the remaining Advisors Contracts in effect and/or the Agreement.

I. **Client Obligations.**

1. **General.** Client agrees that (a) it will comply with all applicable laws, rules and regulations and all of the terms of this Advisors Contract; (b) it will not hire or engage services of a (i) Mastercard Advisors supplier; or (ii) Mastercard Advisors employee (“**Employee**”) involved in performing services under an SoW for one (1) year after the services are performed, provided that the restriction for an Employee will not apply to a non-targeted general solicitation for employment; (c) in connection with Deliverables provided to Client, Client may not: (i) resell, publish, distribute, use for the benefit of, or in any way furnish to a third party any of the Deliverables; (ii) use Deliverables in a manner which would violate any applicable law, regulation, or any of Mastercard Advisors’ policies or Rules; (iii) use such Deliverables in a manner so as to reverse engineer or aid any other party to reverse engineer data contained in the Deliverables; (iv) create any derivative works of or from the Deliverables without the express prior written consent of Mastercard Advisors; or (v) remove any identification, copyright or proprietary or other notices from the Deliverables or any copies thereof; (d) it will not export any of the Deliverables to any country that the U.S. Government, or any agency thereof at the time of export, requires an export license or Governmental approval without first obtaining such license; and (e) the Deliverables will not be used to benefit any payment card that competes with Mastercard.
2. **Client Data.** Client represents and warrants to Mastercard Advisors that (a) it has the right to provide its cardholder or other data (“**Client Data**”) to Mastercard Advisors in connection with a Program, if applicable; (b) the individuals included in any Client Data file will not be on any applicable “Do Not Contact” or “Do Not

Solicit” list; (c) Mastercard Advisors’ use, analysis, manipulation and processing of Client Data pursuant to the Program is permitted under all applicable laws and regulations, and the terms of Client’s contracts with its cardholders; and (d) when applicable, Client’s cardholders have provided consent to the use of such Client Data in the manner contemplated under an SoW. Client grants Mastercard Advisors: (i) the right to use and transfer Confidential Transaction Data (as defined in the Mastercard Rules) in connection with a Program and to use for evaluation, operation, improvement or marketing of Mastercard Advisors programs; and (ii) a worldwide, royalty free, fully paid-up license to copy, distribute, display and use Client’s name, logotype, trademarks or other indicia provided by Client where necessary for the purpose of performing its obligations under an SoW and in advertising and marketing materials. Mastercard Advisors may use aggregated data resulting from the services provided by Mastercard Advisors in anonymous case studies and use, publish, display, and distribute the same for its marketing purposes.

3. **Client Indemnification.** Client agrees to indemnify, defend and hold Mastercard Advisors and its officers, directors, employees, agents, and representatives harmless from any and all damages, losses, penalties, fines, costs, expenses (including, but not limited to, reasonable attorneys’ fees) (“**Losses**”) related to third party claims, regulatory actions or investigations, resulting from, relating to or caused by: (a) Client’s failure to comply with the terms of this Exhibit C or any SoW; (b) the combination or use of the Deliverables with any materials not provided by Mastercard Advisors; (c) any modifications or customizations of the Deliverables; (d) Client’s unauthorized use or distribution of the Deliverables; (e) any materials provided by Client to Mastercard Advisors to include in the

Deliverables; or (f) Client's breach of any of its obligations, representations or warranties under this Exhibit C.

4. Confidentiality, Privacy and Data Protection. Client acknowledges and agrees that all information, Deliverables, insights, reports, methodologies and concepts, in whatever form embodied, including Personal Data and any non-public information about cardholders, applicants or other consumers of MasterCard or Client and/or their affiliates provided in connection with a Program will be deemed to be "**Confidential Information**". During the term of this Advisors Contract and for a period of seven (7) years thereafter (except for non-public information about cardholders, applicants or other consumers of MasterCard and/or Client, which shall be maintained in confidence indefinitely), the party receiving Confidential Information ("**Receiving Party**") from the other Party ("**Disclosing Party**") shall maintain the Confidential Information in strict confidence and shall: (i) use Confidential Information only in connection with Services or as authorized in accordance with an SOW; (ii) not copy any Confidential Information except in connection with Services or as authorized in accordance with an SOW; (iii) not disclose Confidential Information to any third party except as expressly permitted in writing by the Disclosing Party and then only if such third party has executed a confidentiality, privacy and data protection agreement in form and substance satisfactory to the Disclosing Party; and (iv) limit dissemination of Confidential Information to employees with a "need to know" and who are subject to confidentiality, privacy and data protection obligations no less restrictive than those set forth herein. Except with respect to Personal Data, Confidential Information shall not include any information which: (i) is already in the public domain at the time of disclosure through a source other than the Receiving Party; (ii) enters the public domain after disclosure through no fault of the Receiving Party; (iii) is already known to the Receiving Party at the time of disclosure; (iv) was independently developed by the Receiving Party without use of or reference to any Confidential Information; or (v) is subsequently disclosed to the receiving Party by third parties having no obligation of

confidentiality to the Disclosing Party. The parties further agree to comply with all Privacy and Information Security Requirements to the extent applicable in connection with a Program offered under a SoW. Personal Data means any information relating to an identified or identifiable individual, regardless of the media in which it is contained. **Privacy and Information Security Requirements** means all applicable international, federal, state, provincial and local laws, rules, regulations, directives and governmental requirements relating in any way to the privacy, confidentiality or security of personal cardholder data, including, without limitation: Directive 95/46/EC; the Gramm-Leach-Bliley Act; laws regulating unsolicited email communications; security breach notification laws; laws imposing minimum security requirements; laws requiring the secure disposal of records containing certain personal data.

Mastercard Obligations.

1. Limited License. So long as Client is in compliance with all of its obligations under this Exhibit C and the applicable SoW, Mastercard Advisors grants Client a limited, non-exclusive right to use the Deliverables provided in connection with a Program and the underlying data and information contained in the Deliverables, without the right to assign, transfer or sublicense the Deliverables in any way. The parties acknowledge and agree that Mastercard Advisors owns all right, title and interest in and to the Deliverables, the underlying data and information contained in the Deliverables (except for any Client Data), and any Mastercard Technologies contained therein. Mastercard Technologies means certain proprietary capabilities, technologies, logic, methodologies, source code, know-how, intellectual property, data, and/or algorithms that Mastercard Advisors uses to perform services or provide Deliverables.
2. Scope of Services and Deliverables. Mastercard Advisors is providing the Deliverables solely as a tool for informational purposes and not as investment advice. Client agrees that Mastercard Advisors is not providing legal or financial advice in connection with any Services or Deliverables, and Mastercard Advisors makes no representation or warranty about MasterCard's business operations.

3. Mastercard Indemnification. Subject to Clause II (3) below, Mastercard Advisors agrees to indemnify, defend, and hold Client harmless from any and all Losses related to third party claims, regulatory actions, or investigations, resulting from, relating to, or caused by Mastercard Advisors' gross negligence or willful misconduct in performing its services under any SoW.

4. Disclaimer of Warranties and Limitation of Liability. NOTWITHSTANDING ANY OTHER PROVISION TO THE CONTRARY SET FORTH IN THESE TERMS, IN NO EVENT WILL EITHER PARTY BE LIABLE TO THE OTHER UNDER ANY LEGAL THEORY, INCLUDING WITHOUT LIMITATION, TORT, CONTRACT, OR STRICT LIABILITY, FOR ANY SPECIAL, INDIRECT, INCIDENTAL, CONSEQUENTIAL, PUNITIVE OR EXEMPLARY DAMAGES, INCLUDING FOR LOSS OF PROFITS, GOODWILL, OR ECONOMIC LOSS, REGARDLESS OF WHETHER A PARTY KNEW OR SHOULD HAVE KNOWN OF THE POSSIBILITY OF SUCH DAMAGES; PROVIDED, HOWEVER, THAT MASTERCARD ADVISORS' WAIVER OF ITS RIGHT TO RECEIVE SPECIAL, INDIRECT, INCIDENTAL, CONSEQUENTIAL, PUNITIVE OR EXEMPLARY DAMAGES WILL NOT APPLY IN THE EVENT CUSTOMER BREACHES ITS OBLIGATIONS SET FORTH HEREIN. TO THE FULL EXTENT PERMISSIBLE BY APPLICABLE LAW, MASTERCARD ADVISORS DISCLAIMS ALL WARRANTIES, EXPRESS, OR IMPLIED, INCLUDING WARRANTIES OF ACCURACY, MERCHANTABILITY, AND FITNESS FOR A PARTICULAR PURPOSE.

Mastercard Advisors' maximum liability for any claims is limited to the fees or value of services set forth in the particular SoW under which the claim arose.

III. Other Terms.

1. Force Majeure. Neither party will be liable for loss or damage or be deemed to be in default if any failure to perform its obligations results from or is attributable to any act of gods, natural disaster, fire, strike, embargo, war, threat of terrorism, insurrection, strike, riot or other cause beyond the reasonable control of the party; provided however that the

foregoing will not be deemed to excuse any failure to exercise prudence or diligence in the conduct of such Party's affairs.

2. Anti-Bribery and Corruption Laws and Compliance. The Parties recognize that Mastercard Advisors and any person or entity acting on its behalf must comply with international laws related to anti-bribery and corruption (including the U.S. Foreign Corrupt Practices Act, the UK Bribery Act, and other applicable law). Client will comply, and will ensure that each of its subcontractors (if so approved or permitted) and personnel complies, with all applicable anti-bribery and corruption laws applicable to business dealings, including with government officials (as defined below) and any implementing regulations in respect of any such laws. Client warrants, represents and covenants to Mastercard Advisors that Client (and each of its employees, subcontractors and personnel) has not and will not, in connection with the activities contemplated by this Advisors Contractor in connection with any other business activities involving Mastercard Advisors, make, promise or offer to make any payment or transfer of anything of value or any other advantage directly or indirectly through a representative, intermediary agent or otherwise: (a) to any government official; (b) to any political party; or (c) to any other person for the purpose of improperly influencing any act, omission to act or decision of such official, political party or individual or securing an improper advantage to assist the parties in obtaining or retaining business. Client also warrants, represents, and covenants to Mastercard Advisors that Client and each of its employees, subcontractors and personnel will not, in connection with any business activities involving Mastercard Advisors, accept anything of value from any third party seeking to influence any act or decision of Client or in order to secure an improper advantage to that third party. **Government official** is defined as any employee or officer of a government of a country, state or region, including any federal, regional or local government or department, agency, enterprise owned or controlled by the such government, any official of a political party, any official or employee of a public international organization, any person acting in an official capacity for, or on

behalf of, such entities, and any candidate for political office. Failure by Client to comply with the terms of this clause will constitute a material breach of this Advisors Contract.

3. Term and Termination. Either party may terminate this Advisors Contract prior to its expiration without any additional liability to the other, if the other party has breached any of its material commitments under this Advisors Contract which has not been remedied within 14 days after written notice by the first party to the other specifying the breach. Terminations pursuant to this section will be without prejudice to accrued liabilities, including for breach, arising prior to the date of termination.
4. Notices. All notices required or authorised by this Advisors Contract are to be in writing the English language and are to be delivered by either party to the other by hand or by registered post to such address as the parties may inform each other from time to time in accordance with this section. Notices delivered by hand will be deemed given upon hand delivery. Notices delivered by registered post will be deemed given on the fifth working day after the envelope containing the same was posted.
5. No Partnership. Nothing in this Advisors Contract will constitute or be deemed to constitute a partnership between the parties or render the other the agent of the other for any purpose whatsoever. Neither party will have authority or power to bind the other to contract or create a liability against the other in any way.
6. Waivers. No failure to exercise, nor any delay in exercising any right or remedy under this Advisors Contract by any party hereto will operate as a waiver thereof, nor will any single or partial exercise of any right or remedy prevent any further or other exercise thereof or the exercise of any other right or remedy.
7. No assignment. This Advisors Contract will be binding on and will operate for the benefit of each of the parties' successors and permitted assigns. Client will not assign or transfer any of its rights and/or obligations under this Advisors Contract

without the prior consent in writing of Mastercard Advisors, such consent not to be unreasonably withheld. For the purposes of this section, any merger or acquisition of Client or sale of any part of its Mastercard card portfolio will be deemed to be an assignment. Mastercard Advisors will notify Client in writing in the event that it assigns or transfers any of its rights and/or obligations under this Advisors Contract to its Affiliate.

8. Entire Agreement. This Advisors Contract constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes any other prior oral or written agreement regarding the subject matter hereof. This Advisors Contract may only be amended or modified in writing signed by a duly authorised officer or representative of each of the parties.
9. Power and Authority. Each of the parties warrants, represents and undertakes to the other that they have the right, necessary power, consents and authority to enter into and fully perform its obligations under this Advisors Contract and will maintain the same throughout the term of this Advisors Contract and their performance hereunder does not conflict with the rights granted to any other party under any other agreement.
10. Severability. Should any section of this Advisors Contract be found to be invalid or unenforceable, such section (or part thereof) will be deemed severed from this Advisors Contract and the other sections hereof will remain in full force and effect as if this Advisors Contract had been executed without the offending section appearing.
11. Governing Laws and Jurisdiction. This Agreement is governed by the laws ("**Laws**") of New York State and is subject to the exclusive jurisdiction of the courts of New York State. For the avoidance of doubt, the Laws will exclude conflict-of-laws or similar provisions under those Laws that would mandate or permit the application of the laws of any other jurisdiction.

EEMEA Incentive Agreement (PEMO PAYMENTS SERVICE PROVIDER L.L.C and Mastercard)

Final Audit Report

2024-06-13

Created:	2024-06-13 (Eastern Daylight Time)
By:	Signatures Ironclad (signatures.ironclad@mastercard.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAIbPNdTyX9v1HnpX9FXpQvO62Qz91gTtu

"EEMEA Incentive Agreement (PEMO PAYMENTS SERVICE P ROVIDER L.L.C and Mastercard)" History

 Document created by Signatures Ironclad (signatures.ironclad@mastercard.com)
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 Document emailed to alessandro@pemo.io for signature
2024-06-13 - 5:07:25 AM EDT

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2024-06-13 - 5:10:34 AM EDT- IP address: 74.125.208.5

 Signer alessandro@pemo.io entered name at signing as Alessandro Duri
2024-06-13 - 10:04:31 AM EDT- IP address: 5.30.132.180

 Document e-signed by Alessandro Duri (alessandro@pemo.io)
Signature Date: 2024-06-13 - 10:04:33 AM EDT - Time Source: server- IP address: 5.30.132.180

 Document emailed to e054131@mastercard.com for signature
2024-06-13 - 10:04:35 AM EDT

 Email viewed by e054131@mastercard.com
2024-06-13 - 9:35:33 PM EDT- IP address: 134.238.29.104

 Signer e054131@mastercard.com entered name at signing as Benjamin Gilbey
2024-06-13 - 9:36:36 PM EDT- IP address: 134.238.29.104

 Document e-signed by Benjamin Gilbey (e054131@mastercard.com)
Signature Date: 2024-06-13 - 9:36:38 PM EDT - Time Source: server- IP address: 134.238.29.104

✔ Agreement completed.
2024-06-13 - 9:36:38 PM EDT